

2025 PLJ 65

[Law Note (Criminal)]



KHADIJA SHAH

versus

STATE etc.

POST-ARREST BAIL AND FURTHER INQUIRY

CrI. Misc. No. 64830-B of 2023
decided on 11th October, 2023.

(a) Criminal Procedure Code, 1898---S.Section 497(2), S.Section 161; Pakistan Penal Code, 1860---S.Section 302, S.Section 324, S.Section 290, S.Section 291, S.Section 353, S.Section 186, S.Section 153, S.Section 153-A, S.Section 153-B, S.Section 152, S.Section 149, S.Section 148, S.Section 146, S.Section 147, S.Section 131, S.Section 121, S.Section 121-A, S.Section 120-A, S.Section 107, S.Section 109, S.Section 505, S.Section 452, S.Section 436, S.Section 427, S.Section 395, S.Section 120-B; Anti-Terrorism Act, 1997---S.Section 7---Post-Arrest Bail and Further Inquiry---

The petition is accepted as the case against the petitioner falls within the ambit of further inquiry under Section 497(2) Cr.P.C. The petitioner was not named in the FIR or by security guards, and regarding the tweets, she deleted the controversial content and apologized, warranting a chance.

The State is like a mother; a citizen should be given a chance if she/he commits a mistake and apologizes. Allegations of vicarious liability without direct evidence at the bail stage are matters to be determined by the trial court after recording evidence.

Mr. Sameer Khosa for Appellant.

Mr. Tariq Siddique, Rai Akhtar Hussain for Respondent.

Petition accepted, and the petitioner is admitted to post-arrest bail**PLJ 2025 Cr.C. (Note) 65****[Lahore High Court, Lahore]***Present:* Miss Aalia Neelum and Asjad Javaid Ghural, JJ.**KHADIJA SHAH--Petitioner****versus****STATE etc.--Respondents**

Crl. Misc. No. 64830-B of 2023, decided on 11.10.2023.

Criminal Procedure Code, 1898 (V of 1898)--

----S. 497(2)--Pakistan Penal Code, (XLV of 1860), Ss. 302, 324, 290, 291, 353, 186--Post-arrest bail, grant of--Further inquiry--The petitioner, alongwith others, enticed and motivated general public against Pakistan Army, State Institutions, and anti-state activities, leading to a devastating impact on country, is concerned, reports whether she made such tweets and same were uploaded from her social media accounts or not is still awaited--She admitted that one controversial tweet was uploaded which was subsequently deleted through her Twitter message--She tweeted and deleted it by admitting her wrongdoing--The petitioner, in her other Tweet after deleting objectionable tweet, tendered apology through her tweet--The state is like a mother; one should be given a chance if she/he commits a mistake and apologizes--In these circumstances, prima facie prosecution case against petitioner falls under ambit of further inquiry into her guilt under Section 497(2), Cr.P.C--The learned law officer submitted that prosecution case against petitioner is of vicarious liability--In this regard, it is relevant to mention here that trial Court would see vicarious liability of petitioner after recording parties' evidence. [Para 5] A

Mr. Sameer Khosa, Advocate for Petitioner.*Mr. Tariq Siddique*, APG, and *Rai Akhtar Hussain*, APG.

Date of hearing: 11.10.2023.

Order

The petitioner-Khadija Shah, seeks post-arrest bail in the case F.I.R. No. 1271/2023, dated 10.05.2023, registered under section 7 of the Anti-Terrorism Act, 1997 and Sections 302, 324, 290, 291, 353, 186, 153, 153-A, 153-B, 152, 149, 148, 146, 147, 131, 121, 121-A, 120-A, 107, 109, 505, 452, 436, 427, 395, 120-B of the Pakistan Penal Code, 1860, at Police Station Gulberg, District Lahore.

2. Heard. Record perused.

3. In the instant case, initially, the case was registered under Sections 109, 120-B, 147, 148, 149, 186, 152, 153, 290, 291, 302, 324, 353, 395, 427, 436, 452, 505 of the Pakistan Penal Code, 1860, read with Section 7 of the Anti-Terrorism Act, 1997 on 10.05.2023. The complainant, Imran Sadiq, Inspector, alleged in the complaint that the protest took place on the arrest of Imran Khan in connection with the Al-Qadar Trust case on 09.05.2023 at 11:50 p.m. The complainant alleged that the protestors turned violent and attacked different public and private premises. In the said incident, one person engulfed in flames in the Askari Tower, lost his life, who was later identified as Hamza Imran, stated to be a worker of P.T.I. Admittedly, the petitioner was not named in the FIR as one of the protestors leading the protest rally of P.T.I. After that, Imran Sadiq, Inspector, made his statement under Section 161 of Cr.P.C., which was recorded by the investigating officer after 10-minutes of the registration of the case on 10.05.2023, wherein he improved the contents of the FIR and introduced the petitioner as one of the accused leading the protest while raising slogans against the Government, Judiciary, and Army. The relevant portion of the FIR is reproduced hereunder:

In his (Imran Sadiq, Inspector) statement under Section 161 of Cr.P.C., he stated that after collecting evidence from the place of occurrence, *i.e.*, Askari Tower, and dealing with the law-and-order situation, the FIR was registered. On perusal of the contents of the FIR, it reveals that the petitioner's name was not mentioned therein, and the same was introduced in the statement of Imran Sadiq, Inspector under Section 161 of Cr.P.C. The relevant portion of the statement under Section 161 of Cr.P.C. is reproduced hereunder:

The complainant has not specifically named the witnesses who disclosed the petitioner's name and role during the protest before him. Asad Shahzad, S.I, Waseem Iqbal S.I, Asif Iqbal A.S.I, Ehsan Ullah 16360/C, and Muhammad Waseem 6660/C, prosecution witnesses, in their statements under Section 161, Cr.P.C. did not state a single word that they informed to the complainant about the involvement of the petitioner in the instant case. Instead, the statements of these witnesses were verbatim of the statement of the complainant under Section 161 of Cr.P.C. regarding the role of the petitioner. During the investigation, statements under Section 161 of Cr.P.C. of Muhammad Boota son of Abdul Aziz, Gulsher son of Laal Badshah, and Muhammad Islam son of Muhammad Suleman, security guards of Askari Tower, were recorded. They had not stated that the petitioner was among one of the protestors who set Askari Tower on fire or she was leading the protest. Admittedly, the petitioner has not entered the Askari Tower premises, nor is it the case of the prosecution that she set on fire Askari Tower. However, as mentioned above, the role of raising slogans was attributed by the complainant to the other accused, who were named in the FIR.

4. During the investigation, on 13.06.2023, Muhammad Mubashar 27626/C Operator, C.R.O investigation, produced U.S.B and six pages of script before the investigation officer, who took the same into possession. On 14.06.2023, the petitioner was joined in the investigation, and on 19.06.2023, the request for her physical remand was turned down by the trial Court. After that, on 06.09.2023, offenses under Sections 107, 120, 121, 121-A, 131, 146, 153-A, and 153-B, PPC

were added, and physical remand was allowed by the trial Court on 09.09.2023. On 11.09.2023, Muhammad Mubashar 27626/C, Operator C.R.O. (Inv), also produced two U.S.Bs and eight pages of script before the investigating officer, who took the same into possession. On 16.06.2023, Sr. Superintendent of Police Investigation, Lahore, through letter No. 592/05-SSP-Inv, sent the audio/video transcripts of the petitioner in USB and written form to the Additional Director Operations, Cyber Crime Islamabad, for verification of the social media account (Instagram) of the accused petitioner, and whether the videos were uploaded from her account or same are fake. The request for CCTV potages made to Safe City Lahore is also available. However, the reports are not available.

5. As far as the contention of learned Additional Prosecutor Generals that the petitioner, alongwith others, enticed and motivated the general public against the Pakistan Army, State Institutions, and anti-state activities, leading to a devastating impact on the country, is concerned, the reports whether she made such tweets and same were uploaded from her social media accounts or not is still awaited. She admitted that one controversial tweet was uploaded which was subsequently deleted through her Twitter message. She tweeted and deleted it by admitting her wrongdoing. The petitioner, in her other Tweet after deleting the objectionable tweet, tendered apology through her tweet. The state is like a mother; one should be given a chance if she/he commits a mistake and apologizes. In these circumstances, prima facie prosecution case against the petitioner falls under the ambit of further inquiry into her guilt under Section 497(2), Cr.P.C. The learned law officer submitted that the prosecution case against the petitioner is of vicarious liability. In this regard, it is relevant to mention here that the learned trial Court would see the vicarious liability of the petitioner after recording the parties' evidence.

6. For the reasons supra, we hold that the case against the petitioner is of further inquiry as contemplated under Section 497(2) of Cr.P.C. Therefore, this petition is accepted, and the petitioner is admitted to post-arrest bail subject to her furnishing bail bonds in the sum of Rs. 5,00,000/-with two sureties in the like amount to the satisfaction of the trial Court.

(A.A.K.) Petition accepted